

voked. In other areas of the state, traffic violations are processed in the criminal and traffic court of the city, county, town or village where the alleged offense occurred. No matter what court system is involved, every motorist who receives a traffic ticket can present a defense and be represented by a lawyer.

TRAFFIC TICKETS RECEIVED OUT OF STATE

The New York State Department of Motor Vehicles does not record convictions of moving traffic violations by NYS non-commercial licensed drivers in other jurisdictions, except traffic offenses committed in the provinces of Ontario and Quebec in Canada. Out-of-state traffic convictions, except for Ontario and Quebec, are not added to your New York State "violation point" driving record.

However, your New York driver license will be suspended if you fail to answer a ticket for a moving traffic violation in any state except Alaska, California, Michigan, Montana, Oregon, Virginia or Wisconsin. Your license will remain suspended until you answer the ticket. For clearance of your NYS driver license or permit you must submit proof to the NYS Department of Motor Vehicles that the ticket has been satisfied. If you are a driver from any state, except one of the six states listed above, you will have your driver license suspended in your own state if you fail to answer a moving traffic violation summons in New York State.

If you are over 21 years old and are convicted of an alcohol- or drug-related driving violation (e.g., DUI) in another state or the provinces of Ontario and Quebec in Canada, your New York driver license will be revoked for at least 90 days. Out-of-state drivers who get tickets in New York State can contact the motor vehicle department of their own state or province about how a conviction affects them.

If you are under 21 years old and convicted of any alcohol or drug-related violation that occurred out of state, your New York driver license will be revoked for at least one year. If you have any alcohol conviction your license will be revoked for at least one year or until the age of 21, whichever is longer.

The New York State Department of Motor Vehicles records the conviction of any New York driver for criminal negligence, homicide, or assault that arises from the operation of a motor vehicle and which results in death. The driver license or privilege to drive will be revoked and vehicle registrations may also be revoked. It does not matter if the conviction occurred in this state or another state.

MANDATORY SUSPENSION OR REVOCATION

Your driver license or driving privilege can be suspended or revoked for many reasons. **NOTE:** Motorboat and snowmobile operators less than 21 years old who drink alcohol face similar penalties and sanctions against their privileges to operate a motorboat or snowmobile. Examples of revocations and suspensions that are required by law:

Alcohol and Drug Violations (Also see Chapter 9: Alcohol and Other Drugs)

- Aggravated driving while intoxicated (Agg-DWI), with .18 of one percent blood alcohol content (.18 BAC): minimum one-year revocation.
- Driving while intoxicated (DWI), with .08 of one percent blood alcohol content (.08 BAC): minimum six-month revocation
- Driving while ability impaired by alcohol (DWAi): 90-day suspension.
- Driving while ability impaired by drugs (DWAi-drug): minimum six-month revocation
- Driving under the influence of alcohol or drugs out-of-state (DUI): minimum 90-day to six-month revocation, depending on conviction.